

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harry Feigen	Team: Squad #04	CCRB Case #: 201502730	☐ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Friday, 04/03/2015 5:00 PM	Location of Incident: 62nd Precinct stationhouse	18 Mo. SOL 10/3/2016	Precinct: 62
Date/Time CV Reported Sat, 04/11/2015 6:22 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sat, 04/11/2015 3:13 PM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Phil Glenn	25978	947757	062 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Phil Glenn	Off. Language: PO Phil Glenn made remarks to § 87(2)(b) [REDACTED] based upon her education.	A . Unsubstantiated

Case Summary

On April 11, 2015, § 87(2)(b) filed this complaint with the CCRB on behalf of § 87(2)(b) via the On-line website (18 - Board Review).

On April 3, 2015, at approximately 4:24 p.m. § 87(2)(b) was arrested at her nail salon, which is located on § 87(2)(b) in Brooklyn, by PO Phil Glenn. § 87(2)(b) had been involved in a dispute with a customer at the salon, § 87(2)(b) who refused to pay § 87(2)(b) for her services. § 87(2)(b) was also placed under arrest, and both women were brought to the 62nd Precinct stationhouse by PO Glenn.

There, PO Glenn processed § 87(2)(b) and § 87(2)(b)'s arrest paperwork, and then placed them both in holding cells. PO Glenn returned later to fingerprint and photograph § 87(2)(b) and § 87(2)(b). While doing so, PO Glenn told § 87(2)(b) that it was § 87(2)(b)'s fault that the two of them were arrested, as she could not understand English. He then turned to § 87(2)(b) and said, "I know you're pretending to not understand English, but I know you understand it. What's your English level? Sixth grade? Eighth grade? (**Allegation A**).

§ 87(2)(b) was charged with acting in a manner to endanger a child, and was released later that evening with a Desk Appearance Ticket.

Mediation, Civil, and Criminal Histories

§ 87(2)(b) rejected mediation. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
A notice of claim request was submitted to the Comptroller's office on May 12, 2015. It will be added to the case file upon its receipt.

Civilian and Officer CCRB Histories

This is the first CCRB complaint filed by § 87(2)(b) (17 - Board Review). PO Glenn has been a member of service for six years. There are no substantiated allegations § 87(2)(g)
§ 87(2)(b)

Findings and Recommendations

Allegations not pleaded

- Physical Force – In the initial complaint, § 87(2)(b) alleged that PO Glenn pushed § 87(2)(b) to the floor inside of § 87(2)(b) in Brooklyn. § 87(2)(b) refused to give a statement to the CCRB, however, and while § 87(2)(b) stated that she fell to the ground during the incident, she could not describe any force used by PO Glenn which caused her to fall. Furthermore, video footage of the incident provided by § 87(2)(b) showed that PO Glenn did not push § 87(2)(b) to the floor, but rather seemingly let her body go limp as PO Glenn attempted to place § 87(2)(b) in handcuffs (15 - Board Review). § 87(2)(g)
§ 87(2)(b)

Allegation A – Offensive Language: PO Phil Glenn made remarks to § 87(2)(b) based upon her education.

§ 87(2)(b) alleged that while PO Glenn was fingerprinting and photographing § 87(2)(b) and § 87(2)(b) he told § 87(2)(b) that it was § 87(2)(b)'s fault that § 87(2)(b) was arrested. He then told § 87(2)(b) that he knew she understood English, and went on to ask, "What's

your English level? Sixth grade? Eighth grade?” (11 - Board Review) § 87(2)(b) corroborated the first two comments made by PO Glenn, but she did not mention anything about PO Glenn asking § 87(2)(b) what her English grade-level was, and she stated further that she did not hear PO Glenn say anything to § 87(2)(b) that she believed to be offensive (12 - Board Review). PO Glenn denied making any statements to either prisoner about § 87(2)(b)'s English ability, and denied making the alleged offensive remark (13 - Board Review).

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date